



CHAPTER 2.

An Act to make provision for the appointment and functions of a Minister of Defence, and for purposes connected therewith. [19th December 1946.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. It shall be lawful for His Majesty to appoint a Minister of Defence (in this Act referred to as " the Minister ") who shall be in charge of the formulation and general application of a unified policy relating to the armed forces of the Crown as a whole and their requirements.

Appointment and functions of Minister of Defence.

2. The Minister shall take the oath of allegiance and the official oath, and the Promissory Oaths Act, 1868, shall have effect as if the name of the Minister were included in the First Part of the Schedule to that Act.

Oath of allegiance and official oath.
31 & 32 Vict.
c. 72.

3.—(1) The Minister may appoint a Parliamentary Secretary, and such other secretaries, officers and servants as he may with the consent of the Treasury determine.

Appointment of officers, remuneration and expenses.

(2) There shall be paid—

(a) to the Minister, an annual salary not exceeding five thousand pounds ;

(b) to any Parliamentary Secretary appointed by the Minister, and to any other secretaries, officers and servants appointed by the Minister, such salaries or remuneration as the Treasury may determine,

1 Edw. 8 & 1 Geo. 6. c. 38. and for the purposes of section six of the Ministers of the Crown Act, 1937 (which makes provision against duplicate salaries) any salary payable under this subsection to the Minister or to any Parliamentary Secretary appointed by him shall be deemed to be a salary payable under that Act.

(3) The salary of the Minister and his expenses (including any salaries or remuneration payable under paragraph (b) of the last foregoing subsection) shall be defrayed out of moneys provided by Parliament.

Capacity to sit in House of Commons. 4. A person holding office as Minister of Defence, or as Parliamentary Secretary to the Ministry, shall not thereby be rendered incapable of being elected as a member of the Commons House of Parliament, or of sitting or voting as such a member.

Seal, style and acts of Minister. 5.—(1) The Minister shall for all purposes be a corporation sole, and shall have an official seal, which shall be authenticated by the signature of the Minister or of a secretary to the Ministry or of any person authorised by the Minister to act in that behalf.

(2) The seal of the Minister shall be officially and judicially noticed, and every document purporting to be an instrument made or issued by the Minister and to be sealed with the seal of the Minister authenticated in the manner provided by this section, or to be signed by a secretary to the Ministry or any person authorised as aforesaid, shall be received in evidence and be deemed to be so made or issued without further proof, unless the contrary is shown.

(3) A certificate signed by the Minister that any instrument purporting to be made or issued by him was so made or issued shall be conclusive evidence of that fact.

31 & 32 Vict.
c. 37.

(4) The Documentary Evidence Act, 1868, shall apply to the Minister as if his name were included in the first column of the Schedule to that Act, and as if he or a secretary to the Ministry or any person authorised by him to act on his behalf were mentioned in the second column of that Schedule, and as if the regulations referred to in that Act included any document issued by the Minister.

Short title.

6. This Act may be cited as the Ministry of Defence Act, 1946.

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